

Court No. - 2

Case :- WRIT - C No. - 3916 of 2025

Petitioner :- Jaya Ahuja

Respondent :- State Of U.P. Thru. Prin. Secy. Deptt. Of Energy
Lko. And Others

Counsel for Petitioner :- Kunwar Ravi Prakash, Neeraj Tripathi

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Rajan Roy, J.

Hon'ble Om Prakash Shukla, J.

1. Heard Shri Kunwar Ravi Prakash, learned counsel for the petitioner, learned Additional Chief Standing Counsel for the State and Ms. Aprajita Bansal, learned counsel for the Electricity Corporation.

2. Considering the order proposed to be passed issuance of notice to the opposite party no. 5-husband is dispensed with, however, before granting electricity connection to the petitioner, if the occasion so arises, his version shall be taken by the concerned opposite party.

3. The petitioner claims to be the occupant of the house in question but separate electricity connection has not been provided.

4. Learned counsel for the Electricity Corporation says that though the house is in the name of petitioner's mother-in-law, but, the husband with whom she has strained relations is not in occupation.

5. Without expressing any opinion on the occupancy of the premises we **dispose of** this writ petition with the observations/directions that if the petitioner resides in the said premises and wants an electricity connection, then, subject to submission of indemnity bond in terms of Para no. 4.4 of the Electricity Supply Code, 2005 the same shall be considered by the concerned opposite party and needful shall be done.

6. Let the aforesaid decision be taken within a period of three weeks.

7. This order is without prejudice to the rights, if any, of the petitioner's husband or anybody who may claim rights and interest in respect of the premises in question and this order by itself will not confer any right of title nor of

possession of the said premises nor will it prejudice any proceeding pending in respect thereof in any Court or before the Authority.

(Om Prakash Shukla,J.) (Rajan Roy,J.)

Order Date :- 25.4.2025
R.K.P.